Partnership Memorandum of Understanding

Project: LUMA Smart Home — smart-home integration and service company, Southwest Florida
Document: trial-period memorandum — a statement of intent, not a definitive operating agreement
Effective date: _____ _________ 2026 · **Trial period ends:** 31 December 2026

1. Parties

Partner A (Managing Partner): Artem Ishchuk, residing in ____________________, FL.
Partner B: Anatoliy Shiva, residing in ____________________, _____ .

Together the "Partners". Contact details are in Annex D.

2. Purpose and territory

The Partners join efforts to launch and test a residential technology business (the "Project") under the **LUMA Smart Home** brand: design, supply, installation, programming, commissioning and service of lighting control, motorized shading, networking, surveillance, audio/video and home automation, plus recurring **LUMA Care** memberships.

Primary territory: **Sarasota County, Florida**; adjacent: Manatee, Charlotte, DeSoto, Lee, Collier; outside it, only by mutual agreement. Target client: owners of homes and condominiums from **$**_____ in value, and the builders, architects and designers serving them.

3. Trial period and reviews

This Memorandum covers a deliberate trial from the effective date **through 31 December 2026**, to test demand, unit economics and the working relationship **at limited cash risk**. Partner A contributes primarily time as Managing Partner; Partner B contributes limited time, contacts, client introductions and start-up finance.

Rhythm: Partner A **initiates** every operating discussion; Partner B joins. Weekly call of _____ minutes on _____ against the Annex C.5 scorecard. Partner A issues a written **monthly brochure** by the _____ of each month (same KPIs, plus narrative). Final review by **15 December 2026**: (a) sign a definitive Operating Agreement of a Florida LLC; (b) extend the trial by written addendum; (c) end the cooperation under §17.

4. Participation shares

Participant	Share	Applies to
Partner A	_____ %	Profit, losses (§8), membership interest in the LLC
Partner B	_____ %	Same
Reserve pool — future partner or key hire	_____ %	Unissued; allocated only under §13

Work split during the trial is **80 / 20** (A / B). The percentages above are equity and profit; the Partners fill them in, and they need not match the work split. They are **provisional** until the final review against Annex B; failing agreement, they stand. Not transferable without written consent. A share is personal: a spouse, heir or creditor gets only its economic value (Annex B.5), never votes, and each Partner has first refusal.

5. Areas of responsibility

The model is **asymmetric**. Until other titles exist, two roles only: Partner A is **Managing Partner / CDO** (~80%) — commercial and delivery owner; he initiates processes, website and landings, funnels, packages, dealer statuses, engineers, events, visits, closing, delivery, bookkeeping, tax, databases, first team and strategy. Partner B is **business development / intermediary** (~20%) — a related role, not a silent financier: he may sell, introduce, advertise indirectly, direct a contact or make an offer, on a *sufficient* basis, not as an 8–10 hour daily job. He also funds the start, opens the Accent book (end clients, designers, realtors, planners, builders) and holds the low-voltage licence. Day-to-day is the Lead's; detail: Annex A.

#	Area	Lead	Support
1	Sales — quoting, closing; B may originate his own deals	A	B — sufficient: connect, introduce, offer
2	Trade channel — builders, architects, designers, realtors	A	B — Accent + his own intros
3	Design and engineering — system design, price book, programming	A	—
4	Field delivery — subcontractors, scheduling, QA, warranty	A	—
5	Procurement — dealer accounts, purchase orders, stock	A	—
6	Marketing — website, landings, SEO, Angi, paid ads, events	A	B — indirect advertising
7	Finance and admin — bookkeeping via accountant, invoicing, tax, insurance	A	B — start-up finance
8	Licensing and compliance — low-voltage licence, permits, subcontractor files	B	A
9	Client care — support desk, service visits, LUMA Care renewals	A	—
10	Strategy and capital — goals, budget, financing, PR, key relationships	A	B

6. Time commitment

Partner A: _____ **hours per week**. Partner B: **5–6 hours per week**, on a sufficient basis — connect, introduce, direct, offer — **not** an 8–10 hour daily sales job. Partner A initiates every discussion that must be fixed in this interaction; Partner B replies within _____ **business hours** and joins a key meeting on _____ **days'** notice. A new client enquiry is answered within _____ **hours**. Absence over _____ days is announced _____ days ahead with handover. Hours are logged weekly per Annex B.

7. Money at the start (deliberately minimal)

Each Partner contributes up to **$**\_\_\_\_\_ to a common working fund ("Seed Cap"), in tranches as needed, and is not obliged to contribute more during the trial. Target operating budget: **$**_____ **per month**. Any single expense above **$**\_\_\_\_\_, or a new recurring subscription above **$**_____ **per month**, needs written approval of both (email or messenger suffices).

Project hardware, freight and subcontract labour are funded from **client deposits, not partner capital**: standard terms are _____ **%** on signature before equipment is ordered, _____ **%** at rough-in, balance at commissioning. In the first one–two quarters Partner B funds the launch, up to **$**_____ on §8 terms (capital or partner loan). The envelope covers marketing and paid leads (Google Ads, Meta, Angi, Thumbtack and similar), business status, licences, certifications, dealer accounts, CPA set-up, and first buys under signed contracts. Partner A initiates each spend; Partner B releases funds inside the envelope. Personal costs are not reimbursable unless listed in Annex D.5.

8. Losses and additional funding

Losses are shared per §4, but each Partner's **cash obligation during the trial is capped at the Seed Cap**. Neither Partner guarantees the other's obligations or may create debt binding on the other (§12).

If more cash is needed: (a) both contribute pro rata; or (b) one contributes alone and it is recorded as a **partner loan**, repaid before any distribution with _____ % simple interest per annum, or — at the funding Partner's written election at the time — converted into share at **$**_____ **per 1 %** (Annex B.4); or (c) neither contributes and the plan is scaled down.

Bad debt, warranty rework and re-doing defective work are **Project costs** shared per §4, except where caused by a Partner's gross negligence or unapproved deviation from scope, which is charged to that Partner's contribution account.

9. Revenue, profit and distributions

Cash is applied in this order: (1) **direct project costs** — equipment, freight, subcontractors, permits, sales tax; (2) **sales commission** — _____ % of project gross profit to the Partner who sourced and closed the deal, paid before the profit split; (3) **operating expenses**; (4) **cash reserve**, until it reaches **$**_____ (about _____ months of operating expenses); (5) **profit**, distributed per §4, _____ (monthly / quarterly).

During the trial the Partners intend to reinvest at least _____ **%** of profit. No salaries or owner draws unless both agree in writing; a Partner doing billable field or programming work is paid **$**_____ **per hour** as a direct project cost at the rates in Annex A.3, separately from profit share. Every project is quoted from the shared price book at a **minimum gross margin of** _____ **%**; going below that needs both Partners' consent.

10. Goals for the trial

To 31 December 2026: revenue **$**\_\_\_\_\_; signed projects \_\_\_\_\_; average project value **$**_____; realized gross margin _____ **%**; LUMA Care memberships _____; qualified leads per month _____; year-end pipeline **$**_____; signed trade partners _____; photographed reference projects _____. Long-term intent: _____ (grow and hold / build to sell / income business); the 1–5-year picture of each Partner is recorded in Annex D.7.

Go / no-go also weighs: Partner A kept initiating, Partner B connected on a sufficient basis, and the weekly scorecard plus monthly brochure were kept current. Detail: Annex C.

11. Go-to-market and lead rules

Channel priority (1 = first): Accent / Partner B client and trade introductions _____ ; builders and remodelers _____ ; designers and architects _____ ; realtors and property managers _____ ; inbound web, SEO, Google Business Profile _____ ; paid Google / Meta _____ ; Angi, Thumbtack and other paid-lead platforms _____ ; manufacturer lead programs _____ .

Rules from day one: Partner B may originate sales and advertise the Project indirectly; every such lead is in the shared CRM within _____ **hours** with its source. First to log it owns it unless reassigned; **no Project client, lead or vendor is worked outside the pipeline** (§15); one price book. Leads exchanged with a Partner's other business (including Accent) earn the referring side _____ **%** of the deal's gross profit — under §9 when the deal comes into the Project, by separate written terms when it goes out.

12. Decisions and reserved matters

Day-to-day decisions belong to the area Lead (§5). **Written consent of both Partners** is required for: admitting a third partner, investor or equity hire; any borrowing, lease, personal guarantee or client financing; any expense above **$**_____ or contract with liability above **$**_____; the first full-time hire, and any hire of a relative of either Partner; pricing below the §9 margin floor; changes to brand, entity name, domain or website ownership; any profit distribution; entering territory outside §2; manufacturer exclusivity.

Deadlock: seven days' cool-off, then one further meeting with a written agenda, then a mutually chosen mediator in Sarasota County, then §17 — and no unilateral action on a reserved matter while a deadlock is open.

13. Admitting a third partner or investor

Only by **unanimous written consent**, documented in an addendum. Default terms: the new share comes first from the reserve pool in §4, then from equal relative dilution of both Partners; the entrant brings defined cash and/or a role with measurable deliverables; equity vests over _____ **months** with a _____**-month** cliff and reverts if the role is not performed; the entry price is the greater of Annex B.5 or an agreed valuation; the entrant signs the same terms as §15. The same applies to equity hires, revenue-share referral partners and outside investors. Neither Partner may promise equity, revenue share or a title to anyone before that consent exists.

14. Operational improvements and growth

Everything built during the trial — checklists, CRM setup, price book, proposal and contract templates, commissioning procedures, training material, supplier terms — is a **Project asset, not the author's private property**, and must be documented well enough for either Partner to run it. The Partners hold an improvement review every _____ (month / quarter): what to standardize, automate, outsource or hire for, and which metric each change should move. A documented improvement with a measured effect may be credited to its author in Annex B.6. Later growth steps (second crew, showroom, commercial work, more counties, own licence) are planned but not committed here.

15. Confidentiality, exclusivity, non-circumvention *(binding)*

During the trial and for _____ **months** afterwards, each Partner agrees that within the territory of §2 they will not pursue smart-home integration or service business outside the Project — directly, through another entity, as an employee or as a contractor to a competitor — without the other's written consent; will not solicit, quote or serve any Project client, lead, vendor, distributor or subcontractor introduced through the Project other than through the Project; will not solicit Project personnel; and will keep confidential all client data, pricing, vendor terms, project documentation and this Memorandum. Pre-existing activities disclosed in Annex D.2 are excluded.

16. Brand, intellectual property and data *(binding)*

The **LUMA Smart Home** name and marks, the domain, the website with its code and content, photography, price book, templates, CRM records and client data are Project assets, held for the Project and assigned to the LLC on formation. Intellectual property owned by a Partner before the effective date stays theirs and is licensed to the Project free of charge while the cooperation lasts (Annex D.3). If the trial ends, Project assets stay with the Partner designated in Annex D.4 and the other is compensated for their §4 share of agreed value; client data is then used only as the client consents and the law allows.

17. Ending the trial

Either Partner may end the cooperation on _____ **days' written notice**; it also ends on 31 December 2026 unless extended. If a Partner dies or is incapacitated beyond _____ days, the cooperation ends here too, with the share paid out to the Partner or their heirs per Annex B.5; a material breach of §11, §12, §15 or §16, uncured _____ days after written notice, lets the other Partner end it immediately. Then: projects in progress are completed, or transferred with the client's written consent; receivables are collected and payables settled; the working fund, tools and equipment are divided per §4 after all Project obligations; the departing Partner stays bound by §15 and §16; a buy-out of a share is valued per Annex B.5. Protecting the client takes precedence over the Partners' claims against each other.

18. Legal form, licensing and compliance

The Partners intend to operate through a member-managed Florida LLC (working name **LUMA Home Systems LLC**) with a written Operating Agreement, EIN, business bank account, bookkeeping from day one, general liability insurance (plus workers' comp where required), sales-tax registration, and written subcontractor agreements with W-9s and insurance certificates.

Until the entity, insurance and the applicable **Florida licensing route** are in place, no Partner signs client contracts in the Project's name, and any work requiring a low-voltage, alarm-system or electrical licence is performed only by a licensed contractor of record engaged in writing. The intended route is the **low-voltage licence through Partner B**; securing it — or engaging a licensed contractor of record until then — is an Annex C.1 milestone owned by Partner B, due _____ . No Partner may hold themselves out as licensed before the Project is. Each Partner is responsible for their own taxes and work authorization, and each always has unrestricted access to the books, the bank account and all Project documents.

19. Status of this document; governing law; language

Except for §15, §16 and this §19, this Memorandum is a **statement of intent**: it is not intended to create a binding contract, a general partnership, a joint venture, employment, or authority for either Partner to bind the other. It is not legal, tax, accounting or insurance advice; the definitive Operating Agreement will be reviewed by a Florida attorney and a CPA and will supersede this Memorandum.

Changes to this Memorandum are valid only in writing signed by both Partners. Governing law: the State of Florida; venue Sarasota County. Executed in English and Russian; both texts carry the same meaning and, if they differ, the __________ **text prevails**.

20. Signatures

Partner A	Partner B
Name: Artem Ishchuk	Name: Anatoliy Shiva
Signature: ____________________	Signature: ____________________
Date: ________________	Date: ________________

Annexes forming part of this Memorandum: **A** responsibility matrix and rates · **B** contribution ledger and valuation · **C** 90-day plan and KPIs · **D** disclosures and asset register.

Annex A — Responsibility matrix, escalation and rates

A.1 Task-level allocation. For each area of §5, list the recurring tasks, the owner, the cadence, and the tool used.

Area (§5)	Recurring task	Owner	Cadence	Tool / where it lives
1 Sales	First call, needs discovery, site walk	A	per lead	____
1 Sales	Proposal build and presentation	A	per opportunity	____
2 Trade channel	Builder / designer outreach; Accent introductions	A / B	weekly	____
3 Design	System design, equipment list, price book upkeep	A	per project	____
3 Design	Programming and commissioning	A	per project	____
4 Delivery	Subcontractor sourcing and scheduling	A	weekly	____
4 Delivery	Site QA, punch list, client walkthrough	A	per project	____
5 Procurement	Dealer accounts, POs, RMA, stock	A	weekly	____
6 Marketing	Website, landings, SEO, GBP, Angi, Thumbtack, Google / Meta	A	weekly	____
7 Finance	Invoicing, collections, bookkeeping, reporting	A	weekly / monthly	____
7 Finance	Start-up envelope: ads, licences, CPA, first buys	B	first 1–2 qtrs	____
8 Compliance	Low-voltage licence, permits, insurance, W-9 / COI	B	monthly	____
9 Client care	Support intake, service visits, LUMA Care renewals	A	ongoing	____

A.2 Escalation. Client complaint → area Lead within ____ hours → both Partners within ____ hours if unresolved or if the amount at risk exceeds $____. Anything touching safety, licensing, or a written client complaint goes to both Partners immediately.

A.3 Internal billable rates (charged to projects as direct cost, not profit share): design / engineering $____ /h · programming and commissioning $____ /h · field labour $ ____ /h · service call, member $____ /h · service call, non-member $____ /h · travel beyond ____ miles $____ /h or $____ /mile. Rates reviewed at the monthly review.

A.4 Standard commercial terms (fill in once, then use everywhere): deposit ____ % · progress payment ____ % · final ____ % · payment terms net ____ · change-order minimum $____ · labour warranty ____ months · manufacturer warranty pass-through ____ · minimum gross margin ____ %.

Annex B — Contribution ledger, share confirmation and valuation

B.1 Time log (weekly, shared sheet — the primary contribution record during the trial).

Week ending	Partner A hours	Partner B hours	Main work delivered	Notes
______	______	______	______	______

B.2 Cash log (every contribution and reimbursable expense, with receipt).

Date	Partner	Amount	Purpose	Type: capital / loan / reimbursable	Approved by
______	______	$______	______	______	______

B.3 Share confirmation at the final review. Inputs considered, in this order: (1) hours logged in B.1 against the commitment in §6; (2) cash in B.2 net of repayments; (3) delivered results against the KPIs in §10 and the milestones in Annex C; (4) ownership of a critical function that the Project cannot operate without. Any adjustment to §4 requires both signatures and is recorded as an addendum. Default if the Partners cannot agree on an adjustment: the shares in §4 stand unchanged.

B.4 Conversion of cash into share (per §8b): **$______ per 1 %**, valid until ______ , applying only to cash actually received in the working fund and only up to a maximum of ______ % transferred in total.

B.5 Valuation method for a buy-out or a third-party entry (§13, §17). Agreed default: the greater of (a) ______ **×** trailing twelve-month revenue plus ______ **×** annualized LUMA Care recurring revenue, minus debt, plus working capital; or (b) ______ **×** trailing twelve-month owner earnings (profit before distributions, normalized for market-rate labour); or (c) net asset value. Payment terms for a buy-out: ______ % at closing, balance over ______ months at ______ % interest. If the Partners disagree, each names an appraiser and the two appraisers name a third, whose determination is used; cost shared per §4.

B.6 Improvement credits (§14). A documented improvement with a measured effect may be credited here — description, metric moved, measured effect, credit agreed by both Partners.

Annex C — 90-day action plan and KPI dashboard

C.1 Days 1–30 — foundation. Owner and due date for each: entity formed on Sunbiz and EIN obtained (A) _____ ; business bank account and bookkeeping / CPA opened (A) _____ ; general liability quoted and bound (A) _____ ; **low-voltage licence route started (B)** _____ ; Partner B start-up envelope agreed in writing (B) _____ ; sales-tax registration (A) _____ ; shared drive, CRM and calendar live (A) _____ ; price book v1 (A) _____ ; proposal and contract templates (A) _____ ; dealer / distributor applications (Lutron, Ubiquiti, Somfy, Sonos) (A) _____ ; website, landings and Google Business Profile live (A) _____ ; one written subcontractor agreement plus W-9 and COI (A) _____ .

C.2 Days 31–60 — first demand. Accent / Partner B introductions started (B); paid channels live — Google, Meta, Angi, Thumbtack — within the §7 envelope (A, funded by B); target lists: _____ builders, _____ designers/architects, _____ realtors; first _____ proposals; one pilot signed; demo kit for $_____ or less; LUMA Care offer priced.

C.3 Days 61–90 — proof and repeatability. Pilot delivered, commissioned and photographed; client walkthrough and written testimonial; unit economics compared to plan (quoted vs realized gross margin, hours per project vs estimate); the delivery process written down as a checklist; _____ signed trade partners; pipeline of $_____ ; decision documented on what to standardize, automate, outsource or hire next (§14).

C.4 Monthly brochure — Partner A writes it by the date in §3. One number per cell, plan vs actual. This is the document the Partners review together each month.

Metric	Plan	Aug	Sep	Oct	Nov	Dec
Qualified leads (all / from B / from paid)	_____					
Proposals issued / $ value	_____					
Projects signed / $ value	_____					
Revenue recognized	_____					
Realized gross margin %	_____					
Intros / directs / offers by B	_____					
LUMA Care members / MRR	_____					
Cash in working fund / B envelope left	_____					
Partner A / B hours logged	_____					

C.5 Weekly scorecard — Partner A sends it before the weekly call; the Partners check it on the call. Same eight numbers as C.4, plus: site visits this week _____ ; one blocker each (A / B); what Partner A will initiate next week; where Partner B will connect, introduce, direct or offer next week. Not a full-time sales report for B — only what was sufficient.

Annex D — Disclosures, contacts and asset register

D.1 Contacts. Partner A: phone _____ · email _____ · messenger _____ . Partner B: phone _____ · email _____ · messenger _____ . Preferred channel for decisions that must be in writing: _____ . Shared inboxes and accounts, with who holds credentials: _____ .

D.2 Pre-existing activities and conflicts (excluded from §15): Partner A ________________ ; Partner B — Accent (construction and remodeling, Florida) and related work, which remains his primary occupation. Each Partner confirms nothing here prevents them from participating in the Project, including any current employment, non-compete, visa or work-authorization limitation: Partner A _____ , Partner B _____ .

D.3 Pre-existing intellectual property licensed to the Project (owner keeps ownership; free licence while cooperating): ________________ .

D.4 Asset register and custody. For each asset — owner of record during the trial, and who keeps it if the trial ends: brand and marks _____ ; domain and DNS _____ ; website repository and hosting _____ ; Google Business Profile _____ ; CRM and client database _____ ; phone number _____ ; email domain _____ ; social accounts _____ ; price book and templates _____ ; photography and case-study material _____ ; demo kit and tools _____ ; vendor and dealer accounts _____ ; entity documents and tax filings _____ .

D.5 Reimbursable personal costs, if any (§7): ________________ , capped at $_____ per month per Partner.

D.6 Open items to resolve before the definitive agreement. ________________ .

D.7 The 1–5-year picture, in each Partner's own words (§10). Partner A: ________________ . Partner B: ________________ .

This Memorandum is a working document for the Partners' own use during a trial period. It is not legal, tax or accounting advice. Have a Florida attorney and a CPA review the definitive Operating Agreement, the client contract template, and the subcontractor agreements before relying on them commercially.